

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

|                |   |                             |
|----------------|---|-----------------------------|
| OWEN SERRA,    | ) | Case Number: FMS-21-387367  |
|                | ) |                             |
| Petitioner     | ) | Hearing Date: July 28, 2026 |
|                | ) |                             |
| VS.            | ) | Hearing Time: 9:00 AM       |
|                | ) |                             |
| CINDY KANEGAI, | ) | Department: 404             |
|                | ) |                             |
| Respondent     | ) | Presiding: AI MORI          |
|                | ) |                             |

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME),  
CHILD SUPPORT, MISCELLANEOUS ORDERS RELATED TO MINOR CHILD

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Owen Serra (Father) and Cindy Kanegai (Mother) have one minor child together, Esme (DOB 7/6/2020, age 6). On 12/29/2021, this Court issued a one-year Domestic Violence Restraining Order against Father protecting Mother. In an order filed 2/8/2023, the Court found Father had overcome the presumption against joint custody (Fam. Code, § 3044) and ordered joint legal and physical custody with a step-up (to a 2-2-3) parenting time schedule for Father.
- 2) After a child custody evaluation, the parties entered into a Stipulation and Order filed 1/17/2024 in which they agreed that Mother would move to the LaMorinda area with Esme and that the parties will share joint legal and physical custody of Esme with a 60/40 (Mother/Father) parenting time schedule. The parties agreed, and the Court ordered, that the custody arrangement shall be a final custody agreement pursuant to *Montenegro v. Diaz* (2001) 26 Cal.4th 249.
- 3) On 10/14/2024, the parties stipulated to the appointment of parenting coordinator David Donner.

- 1 4) In an order filed 4/6/2025, this Court ordered that Mother may enroll Esme in therapy with  
2 Adriana Taranta and further ordered: “The therapist’s work with Esme will be privileged: this  
3 therapy is intended to assist Esme and shall not be used by either party for the purposes of  
4 attempting to influence the present custody proceedings. The therapist shall be permitted (but is  
5 not required to) speak to the Parties’ Parenting Coordinator . . . and the Parenting Coordinator can  
6 then consider those updates in issuing recommendations to the Court. . . .” “The therapist shall  
7 determine what, if any, information regarding Esme’s sessions to share directly with the parents.  
8 Both parents shall have the right to communicate . . . with any therapist who is providing services  
9 to Esme, and they need not copy the other parent on any such communications. Both parents may  
10 obtain records regarding Esme’s attendance at therapy (i.e., how often she attends, when sessions  
11 occur, and the costs of those sessions). All other records shall be privileged and shall not be  
12 disclosed to the parents or the Court unless the therapist deems disclosure of such information to  
13 be necessary and in Esme’s best interest.”
- 14 5) On for hearing is Father’s request filed 3/2/2026 in which he seeks 50/50 parenting time. Mother  
15 opposes the request on the merits and also asks the Court to receive input from the child’s  
16 therapist (who has asked to provide information to the Court) before issuing a decision on  
17 Father’s request. Mother has also filed a request for clarification of the 4/6/2025 order regarding  
18 the therapist’s ability to provide information to the Court. This request is set for hearing on  
19 9/3/2026 at 9AM in Department 404.
- 20 6) On 7/22/2026, Mother filed an ex parte request seeking to have Father’s request continued to  
21 9/3/2026 (to be heard with Mother’s request), which this Court denied.

## 22 **B. Findings and Orders**

- 23 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child  
24 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in  
25 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
26 child is the United States.
- 27 2) The Court finds it is in Esme’s best interest for the Court to receive information from Esme’s  
28 therapist before issuing a ruling on Father’s request for a change in his parenting time. This  
29 matter is therefore continued to **9/3/2026 at 9AM in Department 404** to permit Esme’s therapist

1 to lodge (not file) and serve on both parties a declaration no longer than 10 pages excluding  
2 exhibits as the therapist deems appropriate and “necessary and in Esme’s best interest.” (See  
3 4/6/2025 order.) This declaration shall be lodged and served on both parties on or before  
4 **8/12/2026**. The parties, through counsel, are ordered to provide the therapist with a copy of this  
5 tentative ruling and subsequent court order forthwith. On or before **8/21/2026**, each party may file  
6 a supplemental declaration, no longer than 5 pages, regarding their respective positions on  
7 Father’s parenting time request in light of any information received from the therapist.

8 3) At the 9/3/2026 hearing, the Court will also address whether child support needs to be modified.

9 At least 20 calendar days prior to the 9/3/2026 hearing date, both parties shall file and serve  
10 updated Income and Expense Declarations. At least 10 calendar days prior to the next hearing  
11 date, both parties shall file and serve Statements of Support Calculation.

12 4) All prior orders not in conflict with these orders shall remain in full force and effect.

13 5) Father’s attorney shall prepare the Findings and Order After Hearing.

14 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other  
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule  
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
19 10 days may allow the other party to prepare a proposed order and submit it to the court in  
20 accordance with CA Rules of Court, Rule 5.125(d).